

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

4. MARK DAVIS V. MARY DAVIS

22FL0006

This matter is before the court for hearing on the Request for Order (RFO) filed by the Petitioner on October 1, 2024, to modify child support¹ and spousal support. Petitioner concurrently filed an Income and Expense Declaration (I&E). The hearing on Petitioner's RFO has been continued multiple times based upon stipulation of the parties. The court notes, however, there is no stipulation in the court's file reserving the court's jurisdiction to retroactively modify support to the date the RFO was filed.

On March 24, 2026, the Respondent filed a Responsive Declaration, as well as a current I&E. Both filings were electronically served upon the Petitioner's attorney that same day, according to the proof of service, also filed March 24, 2026. Respondent consents to guideline child support from October 1, 2024, through May 31, 2025² (Mary Davis Decl., ¶ 3.a.) and zero spousal support as of October 1, 2024 (Mary Davis Decl., ¶ 3.b.), but requests payment of Petitioner's outstanding arrears, plus interest, in a lump sum payment to be made no later than 30 days after the court's order³ (Mary Davis Decl., ¶ 3.c.).

On April 6, 2026, the Petitioner filed an updated I&E, which was electronically served upon Respondent's attorney that same day, according to the attached Proof of Service. The court does not consider the Petitioner's April 6, 2026 filing due to its untimeliness. (Code Civ. Proc., § 1005, subd. (b) [reply papers shall be filed at least five court days before the hearing].)

TENTATIVE RULING #4: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

¹ During the period of October 1, 2024, through present, there is only one minor child for which the parties are obligated to provide support, namely, DD (DOB: 11/22/2006). Both parties acknowledge that their two older children previously "aged out." (Fam. Code, § 3901, subd. (a)(1).)

² It is the court's understanding that May 31, 2025, is the date in which DD, who has attained 18 years of age, was no longer a full-time high school student. (See Fam. Code, § 3901, subd. (a)(1).)

³ The court notes that Respondent's request for payment of outstanding arrears plus interest is a separate request for relief and thus would require a separate noticed RFO; presently, the issue is not before the court.

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5. ERIK FARAHMAND V. ABIGAIL CAGE

PFL20130874

This matter is set for a review hearing on the issues of custody and visitation. Respondent's Supplemental Declaration was filed on April 1, 2026. It was served on March 27th.

Petitioner has not filed a Supplemental Declaration.

Respondent asks the court to maintain the current custody and parenting plan orders including, without limitation, the orders regarding the children's individual therapy and Claire's conjoint therapy. She asks that no further review hearings be set.

After reviewing the Supplemental Declaration of Respondent, the court finds that all current orders remain in the best interests of the children. As such, all current orders remain in full force and effect. This includes, but is not limited to, the orders regarding individual therapy for the children and conjoint therapy for Claire. No further review hearings are being set at this time.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE COURT FINDS THAT ALL CURRENT ORDERS REMAIN IN THE BEST INTERESTS OF THE CHILDREN. AS SUCH, ALL CURRENT ORDERS REMAIN IN FULL FORCE AND EFFECT. THIS INCLUDES, BUT IS NOT LIMITED TO, THE ORDERS REGARDING INDIVIDUAL THERAPY FOR THE CHILDREN AND CONJOINT THERAPY FOR CLAIRE. NO FURTHER REVIEW HEARINGS ARE BEING SET AT THIS TIME.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON